

## Calendar Line 5-20

**Case Name:** *Carolyn McKinney, et al. v. Apple Inc.*

**Case No.:** 25CV464854

These actions arise from defendant Apple Inc.’s (“Apple” or “Defendant”) alleged intentional interception and recording of communications without consent.

Before the Court is Defendant’s omnibus demurrers to the operative complaints in the following cases, which are opposed:

- (1) *Carolyn McKinney, et al. v. Apple Inc.* (25CV464854) (*McKinney*);
- (2) *Cesar Nicolas Avigliano, et al. v. Apple Inc.* (25CV564406) (*Avigliano*);
- (3) *Thomas Henry Kozik, et al. v. Apple Inc.* (25CV465597) (*Kozik*);
- (4) *Zovik Serengulian, et al. v. Apple Inc.* (25CV466084) (*Serengulian*);
- (5) *Kristin Sue Elbert et al. v. Apple Inc.* (25CV466507) (*Elbert*);
- (6) *Adriana Scott, et al. v. Apple Inc.* (25CV466612) (*Scott*);
- (7) *Patrick Casey, et al. v. Apple Inc.* (25CV466683) (*Casey*);
- (8) *Kimberly Lynn Maldonado, et al. v. Apple Inc.* (25CV46721) (*Maldonado*);
- (9) *Elijah Padgett, et al. v. Apple Inc.* (25CV467837) (*Padgett*);  
*Peter Khanbegian, et al. v. Apple Inc.* (25CV467986) (*Khanbegian*);
- (10) *Nick A. Speights, et al. v. Apple Inc.* (25CV468145) (*Speights*);
- (11) *Sergeo R. Perez, et al. v. Apple Inc.* (25CV468430) (*Perez*);
- (12) *Max Nicholas Ulrich, et al. v. Apple Inc.* (25CV469657) (*Ulrich*);
- (13) *Linette Yvonne Frausto, et al. v. Apple Inc.* (25CV469662) (*Frausto*);
- (14) *Kerrie Lynn Sterner, et al. v. Apple Inc.* (25CV469673) (*Sterner*); and
- (15) *Kenneth Rene Mendoza, et al. v. Apple Inc.* (25CV471234) (*Mendoza*).

As discussed below, Apple’s demurrers are OVERRULED.

### I. BACKGROUND

According to the allegations in the operative Complaint in *McKinney*, in 2011 Apple integrated its digital assistant Siri into its devices beginning with the iPhone 4s.<sup>5</sup> (Complaint, ¶¶ 2, 25-26.) By 2019, Siri was a standard feature on subsequent generations of Apple devices. (*Ibid.*) Initially, Siri could only be activated by manually pressing and holding a button on the device, however, in 2014, Apple released a feature which allows users to activate it by saying “Hey, Siri” (the “Trigger Words”). (Complaint, ¶¶ 3, 29.)

Users found that Siri was activated even when they did not say the designated “Trigger Words.” (Complaint, ¶ 4.) Apple was aware of the design flaw but intentionally continued to sell Siri-enabled devices—and continued to record user interactions with Siri—profiting over two hundred billion dollars between 2014 and 2019 alone. (Complaint, ¶¶ 5, 29-30, 32.)

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<sup>5</sup> The allegations in *McKinney* are identical to those in other actions, with the exception of *Frausto* as a first amended complaint has been filed that action and the numbering is slightly different—however, the substance remains identical.

In July 2019, *The Guardian* published an article revealing Apple was disclosing a portion of Siri recordings with third party contractors for use in its “human grading” program to improve Siri’s functionality. (Complaint, ¶¶ 10, 33.) Apple did not have any protocols in place to securely handle or discard the unauthorized recordings. (Complaint, ¶ 37.) Thereafter, *Fumiko Lopez v. Apple Inc.* (Case. No. 4:2019-cv-04577) (the “Class Action” or the “*Lopez* Action”) was filed in the Northern District of California. (Complaint, ¶ 12.) In 2024, the parties in the Class Action reached a tentative settlement.

Apple built its reputation around user privacy and made representations regarding privacy and its committed to protecting it on its consumer-facing webpages. (Complaint, ¶¶ 48-53, 55.) Apple programmed Siri to assure users that it was only listening when asked. (Complaint, ¶ 54.) By purchasing a Siri Device, users entered into a contract with Apple and became subject to Apple’s Software License Agreement (“SLA”) and Privacy Policy, which is incorporated as part of the SLA. (Complaint, ¶ 62.) Its Privacy Policy, as it existed in August 1, 2019, stated “your personal data should always be protected on your device and never shared without your permission.” (Complaint, ¶ 63.) Thus, it was reasonable for consumers to expect that their communications, including their private and confidential conversations, would not be intercepted, recorded, used, or disclosed by Apple without their consent based on Defendant’s own public and contractual commitments to user privacy, as well as general consumer expectations with respect to technology companies like Apple. (Complaint, ¶ 65.)

On May 1, 2025, Plaintiff McKinney filed her Complaint which asserts the following causes of action: (1) Wiretap Act (28 U.S.C. § 2510, *et seq.*); (2) California Invasion of Privacy Act (“CIPA”) (Pen. Code § 630, *et seq.*); (3) Unfair Competition Law (Bus & Prof. Code, § 17200, *et seq.*); (4) Right to Privacy (Cal Constitution Art. I, § 1); (5) intrusion upon seclusion; and (6) breach of contract. The other Plaintiffs filed their respective complaints, which assert the same causes of action based on the same facts as follows: Avigliano (May 7, 2025); Koznik (May 9, 2025); Serengulian (May 19, 2025); Elbert (May 22, 2025); Scott (May 22, 2026); Casey (May 23, 2026); Maldonado (May 30, 2025); Padgett (June 11, 2025); Khanbegian (June 11, 2025); Speights (June 13, 2025); Perez (June 18, 2026); Ulrich (June 30, 2025); Frausto (June 30, 2025);<sup>6</sup> Sterner (June 30, 2025); and Mendoza (July 23, 2025).

Each action has a plaintiff named in the caption and an attachment with a list of plaintiffs. However, the Court notes that of the Plaintiffs named in the captions of the actions, only Plaintiffs McKinney, Kopzik, Serengulian, and Khanbegian remain involved in the actions—the remaining “Caption Plaintiffs” (Cesar Avigliano, Kristin Elbert, Adriana Scott, Patrick Casey, Kimberly Maldonado, Elijah Padgett, Nick Speights, Sergio Perez, Linette Frausto, Kerrie Sterner, Max Ulrich, and Kenneth Mendoza) have been dismissed. (Joint Case Management Statement, p. 7:23-27.)

## **II. REQUESTS FOR JUDICIAL NOTICE**

### **A. Apple’s Request<sup>7</sup>**

Apple requests judicial notice of the following items:

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<sup>6</sup> On July 23, 2025, Plaintiff Frausto filed the operative first amended complaint which asserted the same claims.

<sup>7</sup> Apple filed identical requests for judicial notice in support of its motion for each case.

- (1) The complaint in Class Action, filed on August 7, 2019 (Dkt. No. 1): Exhibit 1;
- (2) Plaintiffs' Unopposed Motion for Preliminary Approval of Class Action Settlement, dated December 31, 2024 (Lopez, Dkt. No. 336): Exhibit 2;
- (3) The *Lopez* Order Granting Motion for Preliminary Approval of Class Action Settlement; Preliminarily Certifying Settlement Class; and Approving Form and Content of Class Notice, dated February 10, 2025 (Lopez, Dkt. No. 341): Exhibit 3;
- (4) The *Lopez* Final Approval Order, dated September 4, 2025 (Lopez, Dkt. No. 406): Exhibit 4;
- (5) The First Supplemental Declaration of Lacey Rose re: Exclusions, dated August 6, 2025 (Lopez, Dkt. No. 384): Exhibit 5;
- (6) The Proposed Court-Ordered Curative Notice, dated September 5, 2025 (Lopez, Dkt. No. 408-1): Exhibit 6;
- (7) The *Lopez* Second Amended Final Approval Order, dated October 14, 2025 (Lopez, Dkt. No. 425): Exhibit 7;
- (8) The *Lopez* Final Judgment, dated October 14, 2025 (Lopez, Dkt. No. 426): Exhibit 8;
- (9) The "Potter Handy Third Party Opt Outs" Notice of Appeal, dated November 12, 2025 (Lopez, Dkt. No. 432): Exhibit 9;
- (10) Plaintiffs' Motion for Appeal Bonds Under Fed. R. App. P. 7, dated November 14, 2025 (Lopez, Dkt. No. 433): Exhibit 10;
- (11) Plaintiffs-Appellees' Motion for Summary Disposition of Potter Handy Third Party Opt-Outs' Notice of Appeal, dated November 19, 2025, in *Lopez v. Apple Inc.*, Case No. 25-7160 (9th Cir. 2025) (Dkt. Entry 9.1.): Exhibit 11;
- (12) The Order Granting Voluntary Dismissal from the Ninth Circuit, dated November 25, 2025 (Lopez, Dkt. No. 439): Exhibit 12;
- (13) The Declaration of Steven Weisbrot re: Notice and Administration, dated June 27, 2025 (Lopez, Dkt. No. 365-2): Exhibit 13;
- (14) Alameda County Superior Court Order, filed in *In re Essure*, JCCP No. 4887 (Alameda Cnty. Super. Ct.), on May 27, 2020: Exhibit 14;
- (15) Alameda County Superior Court Order re: Hearing on Motion for Stay of Proceedings filed by Kaiser Foundation Health Plan Inc. in *Arneja, et al. v. Kaiser Foundation Health Plan Inc.*, No. 25CV116428 (Alameda Cnty. Super. Ct.), on November 4, 2025: Exhibit 15; and
- (16) The Respondent's Superior Court Responses to Petition for Writ of Mandate in *Vaughn v. Tesla, Inc.* Case No. A173053, May 15, 2025: Exhibit 16.

Evidence Code section 452, subdivision (d), permits judicial notice of records of any court of this state or any court of record of the United States or of any state of the United States. (Code Civ. Proc., § 452, subd. (d).) Exhibits 1-15 are court records, therefore they are proper items of judicial notice. Thus, the Court takes judicial notice of the existence of the documents and the legal effect of the court orders but does not take notice of the truth of any disputed contents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 (*Oh*).) Accordingly, Apple's request for judicial notice is GRANTED.

## **B. Plaintiffs' Request<sup>8</sup>**

Plaintiffs request judicial notice of the following items:

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<sup>8</sup> Plaintiffs filed the same request for judicial notice in support of their respective oppositions.